

in support thereof. The court determines a sufficient showing has been made that the settlement, the attorneys' fees of \$99,483.33, the litigation costs of \$23,284.86, the settlement administration costs of \$10,950, and the service award of \$12,800 are fair, adequate, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

The court grants final approval of the class action and approves the attorneys' fees, litigation costs, settlement administration costs, and the service award.

Plaintiff shall submit a proposed final judgment to the court for its review. The court retains jurisdiction over the parties to enforce the terms of the judgment. (Cal. Rules of Court, rule 3.769, subd. (h).)

The court schedules this matter for a final accounting hearing on **January 12, 2027 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a final accounting status report by no later than December 28, 2026.

6. S-CV-0050336 Bal, Gurman v. Amerio, Ashley R

The motion to set aside void judgment and/or voidable judgment and/or equitable relief pursuant to C.C.P. §473(d) is continued to **October 27, 2026 at 8:30 a.m. in Department 32**.

7. S-CV-0050872 Ernst, Cody v. Denham, Michele

Motion for Protective Order

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff's motion for a protective order for an extension of time to respond to defendants' discovery demands is denied as it is supported by insufficient justification. Plaintiff's request for monetary sanctions is likely denied.

Motion to Compel

Defendants Michelle Denham and Lisa Berry move for an order compelling plaintiff to provide responses to defendants' (1) form interrogatories, (2) special interrogatories, and (3) requests for production of documents. No opposition has been filed.

Defendants' request for judicial notice is granted.

The unopposed motion is granted. (Code Civ. Proc., §§ 2030.290; 2031.300.) Within 30 days of service of notice of entry of this order, plaintiff Cody Ernst shall provide verified responses without objections to defendants' (1) form interrogatories, (2) special interrogatories, and (3) requests for production of documents.

Motion to Deem Matters Admitted

Defendants Michelle Denham and Lisa Berry move for an order against plaintiff deeming requests for admission, set one, admitted. No opposition has been filed.

Defendants' request for judicial notice is granted.

The unopposed motion is granted. (Code Civ. Proc., § 2033.280.) Plaintiff Cody Ernst is deemed to have admitted defendants' requests for admissions, set one, numbers 1 through 18.

8. S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard N

Defendant Verdera Community Association's Motion for Determination of Good Faith Settlement

Defendant Verdera Community Association moves for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

9. S-CV-0053223 Myatt, Wayne T v. BJs Restaurant Inc.

The demurrer to plaintiff's third amended complaint and motion to strike portions of plaintiff's third amended complaint is continued to **October 20, 2026 at 8:30 a.m. in Department 32.**

10. S-CV-0053802 Dizdarevic, Alen v. Cal. Dept. of Transport.

The two motions to compel are dropped from calendar as no moving papers were filed with the court.

11. S-CV-0053922 Barriga, Annelise v. Richmond Am. Homes

Defendant's Motion for Judgment on the Pleadings

Defendant moves for judgment on the pleadings as to plaintiff's complaint for the remaining count of negligence. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) The court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court, however, does not accept the truth of